FILED
18-0358
5/10/2018 5:07 PM
tex-24522789
SUPREME COURT OF TEXAS
BLAKE A. HAWTHORNE, CLERK

NO. 18-0358

In the Supreme Court of Texas
Judicial Panel on Multidistrict Litigation

IN RE TEXAS OPIOID LITIGATION

PLAINTIFFS' JOINT RESPONSE TO DEFENDANTS' MOTION TO TRANSFER AND REQUEST FOR IMMEDIATE STAY

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PLAINTIFFS' JOINT RESPONSE TO DEFENDANTS' MOTION TO TRANSFER

Plaintiffs[1] offer this joint response to Manufacturing Defendants' Joint Motion to Transfer, filed April 20, 2018, for the Panel's consideration of Defendants' motion and the proper forum for the proposed opioid multi-district litigation (MDL) proceedings. As an initial matter, Plaintiffs join in the Texas Attorney General's request that a ruling on the motion to transfer be delayed.

I. INTRODUCTION

Plaintiffs acknowledge that the opioid litigation pending in Texas may meet the criteria for designating an MDL pretrial court to coordinate pretrial proceedings if (1) the cases involve "one or more common questions of fact," and (2) the "transfer would be for the convenience of the parties and witnesses" and "would promote the just and efficient conduct of the cases." Tex. R. Jud. Admin. 13. It is not possible to fully consider whether transfer is appropriate, however, because Defendants have failed to properly identify all related cases and include all interested parties. For this reason, Defendants' motion is deficient and should be denied at this time. In the alternative, the Texas MDL Panel should choose an appropriate MDL Court based on the parties' concerns about convenience and judicial qualifications and experience.

II. ARGUMENT

The Texas MDL Panel may transfer related cases to an MDL court to coordinate pretrial proceedings because (1) the cases involve "one or more common questions of fact," and (2) the "transfer would be for the convenience of the parties and witnesses" and "would promote the just and efficient conduct of the cases." Tex. R. Jud. Admin. 13. But it is important for all parties with

[1] Plaintiffs joining in this response are County of Dallas, County of Delta, County of Falls, County of Hopkins, County of Travis, and County of Van Zandt. As noted in Sec. II.A, not all Plaintiffs with claims pending against moving Defendants were identified or included in Defendants' Joint Motion to Transfer and Request for Immediate Stay.

an interest in the litigation be provided the opportunity to be heard by the Panel before a proposed transfer. Defendants have failed to include all interested parties, so the motion should be denied in its current form. Moreover, to ensure that the conduct of the cases is actually just and efficient, if and when an MDL is designated, it is important for the chosen pretrial court to be located in an easily accessible city and for the chosen judge to have the experience and qualifications to take on this complex litigation.

A. The Motion Is Procedurally Defective and Does Not Allow All Affected Parties To Be Heard.

Tex. R. Jud. Admin. 13.3(a) provides that a motion to transfer must:

> (1) state the common question or questions of fact involved in the cases;
>
> (2) contain a clear and concise explanation of the reasons that transfer would be for the convenience of the parties and witnesses and would promote the just and efficient conduct of the cases;
>
> (3) state whether all parties in those cases for which transfer is sought agree to the motion; and
>
> (4) contain an appendix that [identifies] the related cases for which transfer is sought…

Defendants' motion identifies six cases in which transfer is sought:

1. No. D-1-GN-18-00290; *County of Dallas v. Purdue Pharma, L.P., et al*. in the 116th District Court of Dallas County, Texas.

2. No. 11125; *County of Delta v. Purdue Pharma, L.P., et al*. in the 62nd District Court of Delta County, Texas.

3. No. CV40015; *County of Falls v. Purdue Pharma, L.P., et al*. in the 82nd District Court of Falls County, Texas.

4. No. CV43486; *County of Hopkins v. Purdue Pharma, L.P., et al*. in the 62nd District Court of Hopkins County, Texas.

5. No. D-1-GN-18-000625; *County of Travis v. Purdue Pharma, L.P., et al.* in the 216th District Court of Travis County, Texas.

6. No. 17-00302; *County of Van Zandt v. Purdue Pharma, L.P., et al*. in the 294th District Court of Van Zandt, Texas.

Defendants did not include five other cases brought by Texas Counties in which Purdue Pharma, L.P. had already been served:

1. No. 29267; *County of Burleson v. Purdue Pharma, L.P., et al*. in the 335th District Court of Burleson County, Texas. (Ex. 1)

2. No. 2018-DCL-02237-G; *County of Cameron v. Purdue Pharma, L.P., et al*. in the 404th District Court of Cameron County, Texas. (Ex. 2)

3. No. C-1349-18-C; *County of Hidalgo v. Purdue Pharma, L.P., et al*. in the 139th District Court of Hidalgo County, Texas. (Ex. 3)

4. No. CV1813222; *County of Liberty v. Purdue Pharma, L.P., et al*. in the 75th District Court of Liberty County, Texas. (Ex. 4)

5. No. 18-04-24828; *County of Waller v. Purdue Pharma, L.P., et al.* in the 506th District Court of Waller County, Texas. (Ex. 5)

Presumably these cases involve similar issues, and Defendants claim that they "are expected to be tag-along actions." The motion mistakenly claims that no defendant had been served as of the time of filing, but in fact, Purdue was served in each of these five cases sometime between April 13 and April 16—before the motion was filed. (*See* Ex. 1-5) These cases should have been included so that the parties to those cases would have the opportunity to be heard.

Moreover, the five additional cases, which Defendants identify as expected tag-along cases, do not involve identical defendants. For example, Insys Manufacturing, LLC is a served defendant in the five above-named cases, but they are not a named defendant in any of the cases identified by Defendants. (Ex. 6-10) Because Defendants have not identified all interested parties—and so could not say whether all those parties agree to the transfer—Defendants have failed to comply with Tex. R. Jud. Admin. 13.3(a)(3) and (4). The motion to transfer should be

denied at this stage for this reason alone until all interested parties are identified, served and can be heard by the Panel on the issue of transfer.

In light of the Texas Attorney General's request that consideration of the motion be delayed, and notice that the State of Texas will also become an interested party with distinct claims and concerns, there is still more reason to deny the current, defective motion to transfer.

B. Plaintiffs Have Sought to Cooperate with Moving Defendants to Identify an Appropriate MDL Court.

Despite Defendants failure to include all necessary parties, Plaintiffs have sought to work with Defendants in identifying an appropriate court to coordinate pre-trial proceedings. Sharing Defendants' concerns about location and ease of access, Plaintiffs have presented to Defendants a range of qualified Republican and Democratic judges whose courts are conveniently located.

1. The appropriate court must be in a city with easy travel access.

The attorneys involved in this litigation work in several different Texas cities, and finding a court in an accessible and convenient location is important. Locating the MDL in a major city—such as Dallas, Houston, San Antonio, or Austin—will be very important to promoting efficient resolution of pre-trial proceedings.

2. The MDL judge must be experienced and qualified to deal with complex litigation.

This litigation involves complex legal issues and complicated damages models. The relevant evidence is quite extensive, and managing the litigation for all parties in the state will be a difficult and demanding task. Recognizing the challenges involved, Plaintiffs have suggested a range of both Republican and Democratic judges in discussion with Defendants. In light of those discussions, Plaintiffs offer the following judges for consideration as qualified and well-prepared candidates to steer the litigation:

Carl Ginsberg – Dallas

Mark Greenberg – Dallas

Cathy Stryker – Bexar

Renee Yanta – Bexar

Jeff Schadwick – Harris

R. K. Sandill – Harris

Jan Soifer – Travis

Tim Sulak – Travis

Robert Schaffer – Travis

Each of these jurists have shown themselves well-qualified to serve as the MDL judge for the Texas opioid litigation. Other qualified judges, to whom Defendants had significant objections, have been omitted from this list. Plaintiffs also support the preference of the Texas Attorney General that, should an Opioid MDL be formed, it be created in Travis County. As shown above, Plaintiffs have identified three qualified judges in Travis County.

III. CONCLUSION

Plaintiffs respectfully urge the Panel to deny Defendants' motion to transfer as defective for failure to include all interested parties and identify all related cases. At the very least, Plaintiffs join the Texas Attorney General in asking that consideration of the motion to transfer be delayed. In the alternative, Plaintiffs respectfully request that the Panel consider the proffered judges because they have the experience and qualifications that mark them as well-suited to preside over the opioid pre-trial proceedings, and their courts are located in easily accessible cities that will be convenient to all parties. Plaintiffs also request such other and further relief to which they may be justly entitled.

Respectfully submitted,

By: */s/ W. Mark Lanier*

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Counsel for the County of Falls

CERTIFICATE OF SERVICE

I hereby certify that, on the 10th day of May 2019, a true and correct copy of this Plaintiffs' Joint Response to Defendants' Motion to Transfer and Request for Immediate Stay was served through the Court's electronic filing systems to all counsel of record.

/s/ W. Mark Lanier
W. Mark Lanier

Exhibit 1

Return to District Clerk

CLERK'S ORIGINAL

Return to District Clerk

CLERK'S ORIGINAL

CLERK OF THE COURT
DANA FRITSCHE
205 E. FOX ST. SUITE # 2001
CALDWELL, TX 77836

ATTORNEY FOR PLAINTIFF
MIKAL C WATTS
811 BARTON SPRINGS ROAD SUITE 725
AUSTIN, TX 78704

THE STATE OF TEXAS

NOTICE TO DEFENDANT: "YOU HAVE BEEN SUED. YOU MAY EMPLOY AN ATTORNEY. IF YOU OR YOUR ATTORNEY DO NOT FILE A WRITTEN ANSWER WITH THE CLERK WHO ISSUED THIS CITATION BY 10:00 A.M. ON THE MONDAY NEXT FOLLOWING THE EXPIRATION OF TWENTY DAYS AFTER THE DATE YOU WERE SERVED THIS CITATION AND PETITION, A DEFAULT JUDGMENT MAY BE TAKEN AGAINST YOU."

To Defendant, **PURDUE PHARMA LP, MAY BE SERVED THROUGH ITS REGISTRED AGENT FOR SERVICES OF PROCESS, THE PRENTICE-HALL CORPORATION SYSTEM, INC., 251 LITTLE FALLS DRIVE, WILMINGTON, DE 19808**

Greeting:

You are hereby commanded to appear by filing a written answer to the **PLAINTIFF'S ORIGINAL PETITION AND JURY DEMAND** at or before ten o'clock A.M. of the Monday next after the expiration of twenty days after the date of service of this citation before the Honorable 335th Judicial District Court of Burleson County, at the Courthouse in said County in Caldwell, Texas.

Said Plaintiff's Petition was filed in said court on the day of 13th day of April, 2018 in this cause, numbered **29267** on the docket of said court, and styled,

COUNTY OF BURLESON
VS.
AMERISOURCEBERGEN CORPORATION,PURDUE PHARMA LP,PURDUE PHARMA INC.,
PURDUE FREDERICK COMPANY, TEVA PHARMACEUTICAL INDUSTRIES LTD.
TEV PHARMACEUTICALS USA, INC.,JANSSEN PHARMACEUTICA, INC. N/K/A/ JANSSEN PHARMACEUTICALS, INC.
ENDO HEALTH SOLUTIONS, INC.,ABBOTT LABORATORIES, KNOLL PHARMACEUTICAL COMPANY
ALLERGEN PLC F/K/A ACTAVIS PLC F/K/A ALLERGEN FINANCE LLC.,ACTAVIS LLC
ACTAVIS PHARMA, INC. F/K/A WATSON PHARMA, INC., INSYS THERAPEUTICS, INC.
INSYS MANUFACTURING LLC,MALLINCKRODT PLC,MCKESSON CORPORATION,CARDINAL HEALTH INC.

The nature of Plaintiff's demand is fully shown by a true and correct copy of accompanying this citation and made a part hereof.

The officer executing this writ shall promptly serve the same according to the requirements of law, and the mandates thereof, and make due return as the law directs.

Issued and given under my hand and seal of said Court at Caldwell, Texas, this 13th day of April, 2018.

CLERK DISTRICT COURT BURLESON COUNTY TEXAS

Dana Fritsche, Clerk, District Court
Burleson County, Texas

By Raquel Pena
RAQUEL PENA, DEPUTY

SHERIFF'S RETURN

Came to hand on the _____ day of _____,
_____, at _____ o'clock ____M and executed in _____ County, Texas, by delivering to each of the within named defendants, in person, a true copy of this Citation, having first endorsed thereon the date of delivery, together with the accompanying true and correct copy of the Plaintiff's Petition, at the following times, to wit:_____
And not executed as to the defendant _____, _____
_____
the diligence used in finding said defendant ____, being _____

NAME	DATE			TIME		
	Month	Day	Year	Hour	Min.	__. M.

and the cause of failure to execute this process is: _____
and the information received as to the whereabouts of the said defendant _____, being _____

FEES – Serving _____ cop ____ $ _____

_____
Sheriff
Burleson County, Texas

Total _____ $ _____ By _____ Deputy

AFFIDAVIT ATTACHED

File No. 29267

DISTRICT COURT

Burleson County, Texas

CITATION

COUNTY OF BURLESON
VS.
AMERISOURCEBERGEN CORPORATION,PURDUE PHARMA LP,PURDUE PHARMA INC.
PURDUE FREDERICK COMPANY,TEVA PHARMACEUTICAL INDUSTRIES LTD.
TEV PHARMACEUTICALS USA, INC.,JANSSEN PHARMACEUTICA, INC. N/K/A/ JANSSEN
PHARMACEUTICALS, INC.,ENDO HEALTH SOLUTIONS, INC.,ABBOTT LABORATORIES
KNOLL PHARMACEUTICAL COMPANY,ALLERGEN PLC F/K/A ACTAVIS PLC F/K/A ALLERGEN
FINANCE LLC., ACTAVIS LLC,ACTAVIS PHARMA, INC. F/K/A WATSON PHARMA, INC.
INSYS THERAPEUTICS, INC.,INSYS MANUFACTURING LLC,MALLINCKRODT PLC
MCKESSON CORPORATION,CARDINAL HEALTH INC.

Issued 13th day of April, 2018
Dana Fritsche, District Clerk
By: Raquel Pena, Deputy

Filed 13th day of April, 2018
Dana Fritsche, District Clerk
By: Raquel Pena, Deputy

AFFIDAVIT OF SERVICE

State of Texas **County of Burleson** **335th District Court**

Case Number: 29267

Plaintiff:
County of Burleson

vs.

Defendant:
Purdue Pharma LP;Purdue Pharma, et al

Received these papers on the 13th day of April, 2018 at 4:30 pm to be served on **Purdue Pharma LP, through Its Registered Agent The Prentiss-Hall Corporation System, Inc.,, 251 Little Falls Drive, Wilmington, New Castle County, DE 19808**.

I, Darryl Wooding, being duly sworn, depose and say that on the **16th day of April, 2018** at **12:07 pm, I:**

delivered to an **AUTHORIZED** person a true copy of the **Citation- Plaintiff's Original Petition And Jury Demand** with the date of service endorsed thereon by me, to: **Lynanne Gares** as **Litigation Management Services Leader** at the address of: **251 Little Falls Drive, Wilmington, New Castle County, DE 19808**, who stated they are authorized to accept service for **Purdue Pharma LP, through Its Registered Agent**, and informed said person of the contents therein, in compliance with state statutes.

I am a private process server and I am over the age of twenty one, not a party to nor interested in the outcome of this lawsuit. I am capable of making this Affidavit, and fully competent to testify to the matters stated herein. I have personal knowledge of each of the matters stated herein and the statements made in this Affidavit are true and correct.

GEORGE C. BARTOLI
MY COMMISSION
EXPIRES
APRIL 5, 2022
NOTARY PUBLIC
STATE OF DELAWARE

Darryl Wooding

Subscribed and Sworn to before me on the 27th day of April, 2018 by the affiant who is personally known to me.

NOTARY PUBLIC

Our Job Serial Number: ESA-2018000803

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Exhibit 2

CITATION – PERSONAL SERVICE – TRCP 99

THE STATE OF TEXAS

2018-DCL-02237-G

County of Cameron	§	IN THE 404TH DISTRICT COURT
VS	§	OF
Purdue Pharma LP	§	CAMERON COUNTY, TEXAS

TO **Purdue Pharma L.P.**
may be served through its registered agent for service of process,
The Prentice-Hall Corporation System, Inc.,
251 Little Falls Drive
Wilmington, DE 19808, GREETING:

NOTICE TO DEFENDANT: "You have been sued. You may employ an attorney. If you or your attorney does not file a written answer with the clerk who issued this citation by 10:00 a.m. on the Monday next following the expiration of 20 days after the date you were served this citation and petition, a default judgment may be taken against you." *TRCP. 99*

You are hereby commanded to appear by filing a written answer to **Plaintiff's Original Petition and Jury Demand** at or before 10:00 o'clock A.M. on the Monday next after the expiration of 20 days after the date of service of this citation before the Honorable 404th District Court of Cameron County, at the Courthouse in said County in Brownsville, Texas. Said **Plaintiff's Original Petition and Jury Demand** was filed in said court on **April 12, 2018**, in the above entitled cause.

The file number of said suit being
2018-DCL-02237-G

The style of the case is:
County of Cameron
vs.
Purdue Pharma LP,Purdue Pharma Inc.,The Purdue Frederick Company,Teva Pharmaceutical Industries, Ltd.,TEV Pharmaceutaicals USA, Inc.,Janssen Pharmaceutica, Inc. n/k/a Janssen Pharmaceutcials, Inc.,Endo Health Solutions, Inc.,Abbott Laboratories,Knoll Pharmaceutical Company,Allergen PLC f/k/a Actavis PLC f/k/a Allergen Finance LLC,Actavis LLC,Actavis Pharma, Inc. f/k/a Watson Pharma, Inc.,INSYS Therapeutics, Inc.,INSYS Manufacturing LLC,Mallinckrodt PLC,McKesson Corporation,Cardinal Health, Inc.,Amerisourcebergen Corporation

The nature of Petitioner's demand is fully shown by a true and correct copy of **Plaintiff's Original Petition and Jury Demand** accompanying this citation and made a part hereof.

The officer executing this writ shall promptly serve the same according to requirements of law, and the mandates thereof, and make due return as the law directs.

Issued and given under my hand and seal of said Court at Brownsville, Texas, on this the 13th day of April, 2018.

ATTORNEY:
MIKAL WATTS
20981820
210-447-0500
300 CONVENT STREET STE 100
San Antonio TX 78205

DISTRICT COURT CAMERON COUNTY, TEXAS

Eric Garza
District Clerk of Cameron County
974 E Harrison St.
Brownsville, Texas 78520

By:_____
Adriana Munoz, Deputy Clerk

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2018-DCL-02237-G 404th District Court	County of Cameron vs. Purdue Pharma LP,Purdue Pharma Inc.,The Purdue Frederick Company,Teva Pharmaceutical Industries, Ltd.,TEV Pharmaceutaicals USA, Inc.,Janssen Pharmaceutica, Inc. n/k/a Janssen Pharmaceutcials, Inc.,Endo Health Solutions, Inc.,Abbott Laboratories,Knoll Pharmaceutical Company,Allergen PLC f/k/a Actavis PLC f/k/a Allergen Finance LLC,Actavis LLC,Actavis Pharma, Inc. f/k/a Watson Pharma, Inc.,INSYS Therapeutics, Inc.,INSYS Manufacturing LLC,Mallinckrodt PLC,McKesson Corporation,Cardinal Health, Inc.,Amerisourcebergen Corporation

RETURN OF SERVICE

Executed when copy is delivered:
This is a true copy of the original citation, was delivered to defendant _____, on the _____ day of _____, 20_____.

NAME/ADDRESS FOR SERVICE
_____
_____
_____
_____

_____Officer
_____County, TX

By:_____Deputy

OFFICERS RETURN

Came to hand on the _____ day of _____, at _____o'clock ___m and _____ County, Texas, by delivering to each of the within named defendants in person, a true copy of this _____ with the date of delivery endorsed thereon, together with the accompanying copy of the _____ at the following times and places, to wit:

NAME	DATE/TIME	PLACE/COURSE/DISTANCE FROM COURTHOUSE

AFFIDAVIT ATTACHED

And not executed as to the defendant(s),_____
The diligence used in finding said defendant(s) being:
_____
and the cause or failure to execute this process is:
_____
and the information received as to the whereabouts of said defendant(s) being:
_____

FEES:
SERVING PETITION/COPY $_____
TOTAL: $_____

_____Officer
_____County, TX

By:_____Deputy

_____
AFFIANT

COMPLETE IF YOU ARE A PERSON OTHER THAN A SHERIFF, CONSTABLE, OR CLERK OF THE COURT.

In accordance with Rule 107: The officer or authorized person who serves, or attempts to serve, a citation shall sign the return. The signature is not required to be verified. If the return is signed by a person other than a sheriff, constable or the clerk of the court, the return shall be signed under penalty or perjury and contain the following statement:
"My name is _____, my date of birth is _____, my address is
_____
I DECLARE UNDER PENALTY OF PERJURY THAT THE FOREGOING IS TRUE AND CORRECT.
EXECUTED in _____ County, State of _____, on the _____ day of _____. 20_____.

_____
ID Number/Expiration of Certification

_____
Declarant/Authorized Process Server

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AFFIDAVIT OF SERVICE

State of Texas **County of Cameron** **404th District Court Court**

Case Number: 2018-DCL-02237-G

Plaintiff:
County Of Cameron

vs.

Defendant:
Purdue Pharma LP, Purdue Pharma Inc., The Purdue Frederik Company ET AL

Received these papers on the 13th day of April, 2018 at 4:30 pm to be served on **Purdue Pharma L.P. The Prentice- Hall Corporation System, Inc., may be served through its registered agent, 251 Little Falls Drive, Wilmington, New Castle County, DE 19808**.

I, Darryl Wooding, being duly sworn, depose and say that on the **16th day of April, 2018** at **12:07 pm, I:**

delivered to an **AUTHORIZED** person a true copy of the **Citation - Plaintiff Original Petition and Jury Demand** with the date of service endorsed thereon by me, to: **Lynanne Gares** as **Litigation Management Services Leader** at the address of: **251 Little Falls Drive, Wilmington, New Castle County, DE 19808**, who stated they are authorized to accept service for **Purdue Pharma L.P.**, and informed said person of the contents therein, in compliance with state statutes.

I am a private process server and I am over the age of twenty one, not a party to nor interested in the outcome of this lawsuit. I am capable of making this Affidavit, and fully competent to testify to the matters stated herein. I have personal knowledge of each of the matters stated herein and the statements made in this Affidavit are true and correct.



Darryl Wooding

Subscribed and Sworn to before me on the 27th day of April, 2018 by the affiant who is personally known to me.

NOTARY PUBLIC

Our Job Serial Number: ESA-2018000799

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Exhibit 3

NOTICE: Pursuant to TRCP 126: Statement of Inability to Afford Payment of Court Costs or an Appeal Bond filed = NO

C-1349-18-C
139TH DISTRICT COURT, HIDALGO COUNTY, TEXAS

CITATION
THE STATE OF TEXAS

NOTICE TO DEFENDANT: You have been sued. You may employ an attorney. If you or your attorney do not file a written answer with the clerk who issued this citation by 10:00 a.m. on the Monday next following the expiration of twenty (20) days after you were served with this citation and petition, a default judgment may be taken against you.

PURDUE PHARMA LP
REGISTERED AGENT: THE PRENTICE-HALL CORPORATION SYSTEM, INC.
251 LITTLE FALLS DRIVE
WILMINGTON, DE 19808

You are hereby commanded to appear by filing a written answer to the **PLAINTIFF'S ORIGINAL PETITION AND JURY DEMAND** on or before 10:00 o'clock a.m. on the Monday next after the expiration of twenty (20) days after the date of service hereof, before the **Honorable Bobby Flores, 139th District Court** of Hidalgo County, Texas at the Courthouse at 100 North Closner, Edinburg, Texas 78539.

Said petition was filed on this the 12th day of April, 2018 and a copy of same accompanies this citation. The file number and style of said suit being C-1349-18-C, **COUNTY OF HIDALGO VS. PURDUE PHARMA LP, PURDUE PHARMA INC., PURDUE FREDERICK COMPANY, TEVA PHARMACEUTICAL INDUSTRIES LTD., TEV PHARMACEUTICALS USA INC., JANSSEN PHARMACEUTICA, INC. N/K/A JANSSEN PHARMACEUTICALS, INC., ENDO HEALTH SOLUTIONS, INC., ABBOTT LABORATORIES, KNOLL PHARMACEUTICAL COMPANY, A WHOLLY-OWNED SUBSIDIARY OF ABBOTT LABORATORIES, ALLERGEN PLC, F/K/A ACTAVIS PLC, F/K/A ALLERGEN FINANCE LLC, F/K/A ACTAVIS, INC.,, INSYS THERAPEUTICS, INC., INSYS MANUFACTURING LLC, A WHOLLY-OWNED SUBSIDIARY OF INSYS THERAPEUTICS, INC., MALLINCKRODT PLC, MCKESSON CORPORATION, CARDINAL HEALTH INC., AMERISOURCEBERGEN CORPORATION, ACTAVIS LLC, ACTAVIS PHARMA, INC. F/K/A WATSON PHARMA, INC.**

Said Petition was filed in said court by Attorney **MIKAL C. WATTS, 4 DOMINION DRIVE BLDG. 3, STE. 100 SAN ANTONIO, TEXAS 78257**.

The nature of the demand is fully shown by a true and correct copy of the petition accompanying this citation and made a part hereof.

The officer executing this writ shall promptly serve the same according to requirements of law, and the mandates thereof, and make due return as the law directs.

ISSUED AND GIVEN UNDER MY HAND AND SEAL of said Court at Edinburg, Texas on this the 13th day of April, 2018.

LAURA HINOJOSA, DISTRICT CLERK
100 N. CLOSNER, EDINBURG, TEXAS
HIDALGO COUNTY, TEXAS



_____
IRIS RAMIREZ, DEPUTY CLERK

C-1349-18-C
OFFICER'S RETURN

Came to hand on _____ of _____, 201____ at _____ o'clock ____.m. and executed in _____ County, Texas by delivering to each of the within named Defendant in person, a true copy of this citation, upon which I endorsed the date of delivery to said Defendant together with the accompanying copy of the _____ (petition) at the following times and places, to-wit:

NAME	DATE	TIME	PLACE

And not executed as to the defendant, _____ the diligence used in finding said defendant, being: _____ and the cause of failure to execute this process is: _____ and the information received as to the whereabouts of said defendant, being: _____. I actually and necessarily traveled _____ miles in the service of this citation, in addition to any other mileage I may have traveled in the service of other process in the same case during the same trip.

Fees: serving ... copy(s) $_____
miles .....$_____

_____
DEPUTY

AFFIDAVIT ATTACHED

COMPLETE IF YOU ARE PERSON OTHER THAN A SHERIFF, CONSTABLE OR CLERK OF THE COURT

In accordance to Rule 107, the officer or authorized person who serves or attempts to serve a citation must sign the return. If the return is signed by a person other than a sheriff, constable or the clerk of the court, the return must either be verified or be signed under the penalty of perjury. A return signed under penalty of perjury must contain the statement below in substantially the following form:

"My name is _____, my date of birth is _____ and the address is _____,and I declare under penalty of perjury that the foregoing is true and correct.

EXECUTED in _____County, State of Texas, on the _____ day of _____, 201___.

_____
Declarant"

_____
If Certified by the Supreme Court of Texas
Date of Expiration / SCH Number

AFFIDAVIT OF SERVICE

State of Texas | **County of Hidalgo** | **139th District Court**

Case Number: C-1349-18-C

Plaintiff:
County of Hidalgo

vs.

Defendant:
Purdue Pharma LP, ET AL

Received these papers on the 13th day of April, 2018 at 4:30 pm to be served on **Purdue Pharma LP Registered Agent: The Prentice-Hall Corporation System, Inc., 251 Little Falls Drive, Wilmington, New Castle County, DE 19808**.

I, Darryl Wooding, being duly sworn, depose and say that on the **16th day of April, 2018** at **12:07 pm, I:**

delivered to an **AUTHORIZED** person a true copy of the **Citation - Plaintiff's Original Petition and Jury Demand** with the date of service endorsed thereon by me, to: **Lynanne Gares** as **Litigation Management Services Leader** at the address of: **251 Little Falls Drive, Wilmington, New Castle County, DE 19808**, who stated they are authorized to accept service for **Purdue Pharma LP**, and informed said person of the contents therein, in compliance with state statutes.

I am a private process server and I am over the age of twenty one, not a party to nor interested in the outcome of this lawsuit. I am capable of making this Affidavit, and fully competent to testify to the matters stated herein. I have personal knowledge of each of the matters stated herein and the statements made in this Affidavit are true and correct.

GEORGE C. BARTOLI
MY COMMISSION
EXPIRES
APRIL 5, 2022
NOTARY PUBLIC
STATE OF DELAWARE

Darryl Wooding

Subscribed and Sworn to before me on the 27th day of April, 2018 by the affiant who is personally known to me.

NOTARY PUBLIC

Our Job Serial Number: ESA-2018000756
Ref: 55652

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Exhibit 4

CLERK OF THE COURT
Donna G. Brown, District Clerk
1923 Sam Houston, Room 115
Liberty, Texas 77575

ATTORNEY FOR PLAINTIFF OR PLAINTIFF'(S)
Mikal C. Watts
4 Dominion Drive, Bldg.3, Suite 100
San Antonio, Texas 78257

NOTICE TO DEFENDANT: "You have been sued. You may employ an attorney. If you or your attorney do not file a written answer with the clerk who issued this citation by 10:00 a.m. on the Monday next following the expiration of twenty days after you were served this citation and petition, a default judgment may be taken against you."

THE STATE OF TEXAS

TO: PURDUE PHARMA L.P., by and through its registered agent, The Prentice-Hall Corporation System, Inc., Respondent, Greetings;

You are hereby commanded to appear by filing a written answer to the Petitioner's Original Petition and Jury Demand, at or before ten o'clock A.M. of the Monday next after the expiration of twenty days after the date of service of this citation before the Honorable **75TH JUDICIAL DISTRICT COURT** of Liberty County, Texas at the Court House of said County in Liberty, Texas.

Said Petitioner's Petition was filed in said court on the 12th day of April, 2018, in this cause, Numbered **CV1813222** on the docket of said court, and styled, County Of Liberty, Plaintiff vs. Purdue Pharma LP; Purdue Pharma Inc; Purdue Frederick Company; Teva Pharmaceutical Industries, LTD; TEV Pharmaceuticals USA, Inc; Janssen Pharmaceutica, Inc., n/k/a Janssen Pharmaceuticals, Inc.; ENDO Health Solutions, Inc.; Abbott Laboratories; Knoll Pharmaceutical Company, a wholly-owned subsidiary of Abbott Laboratories; Allergen PLC, f/k/a Actavis PLC f/k/a Allergen Finance LLC, f/k/a Actavis, Inc., f/k/a Watson Laboratories, Inc.; Actavis LLC; Actavis Pharma, Inc., f/k/a Watson Pharma, Inc.; Insys Therapeutics, Inc.; Insys Manufacturing LLC, a wholly-owned Subsidiary of Insys Therapeutics, Inc.; Mallinckrodt PLC; McKesson Corporation; Cardinal Health, Inc.; and Amerisourcebergen Corporation; Defendants.

The nature of Petitioner's demand is fully shown by a true and correct copy of Petitioner's Original Petition and Jury Demand, accompanying this citation and made a part hereof.

The Officer executing this writ shall promptly serve the same according to requirements of law, and the mandates thereof, and make due return as the law directs.

Issued and given under my hand and seal of said Court at Liberty, Texas, this the 13th day of April, 2018.

(SEAL)

Attest Donna G. Brown, Clerk, District Court
Donna G. Brown, District Clerk
Liberty County, Texas

By Frances Kester, Deputy
Frances Kester, Deputy

Rule 106 " the citation shall be served by the officer delivering to each defendant, in person, a true copy of this citation with the date of delivery endorsed thereon and with a copy of the petition attached thereto.

SHERIFF'S RETURN

Came to hand on _____ day of _____, 201___, at _____ o'clock ____. M., and executed in _____ County, Texas by delivering to each of the within-named _____, in person, a true copy of this Citation, having first endorsed thereon the date of delivery, together with the accompanying true and correct copy of the Plaintiff's Petition, at the following times and places, to wit:

Name	Date			Time			Place, and Course and Distance From Court House
	Month	Day	Year	Hour	Min.	....M.	

And not executed as to the Respondent, _____ the diligence used in finding said Respondent, being: _____ and the cause of failure to execute this process is: _____ and the information received as to the whereabouts of the said Respondent, being: _____

AFFIDAVIT ATTACHED

FEES — Serving _____ Copy _____ $ _____.____
Total $_____.___

_____Sheriff/Constable, Precinct # _____

_____County, Texas

By _____,
Deputy

CERTIFICATE OF DELIVERY

I, do hereby certify that I delivered to _____, Defendant on the _____ day _____, 201_____, at _____o'clock ___.M. a copy of this instrument.

_____Sheriff/Constable,
Precinct # _____
By_____, Deputy

AFFIDAVIT OF SERVICE

State of Texas | **County of Liberty** | **75th Judicial Court**

Case Number: CV1813222

Plaintiff:
County of Liberty

vs.

Defendant:
Purdue Pharma LP, ET AL

Received these papers on the 13th day of April, 2018 at 4:30 pm to be served on **Purdue Pharma, L.P. by and through its registered agent, The Prentice-Hall Corporation System, Inc., 251 Little Falls Drive, Wilmington, DE 19808**.

I, Darryl Wooding, being duly sworn, depose and say that on the **16th day of April, 2018** at **12:07 pm, I:**

delivered to an **AUTHORIZED** person a true copy of the **Citation - Plaintiff's Original Petition and Jury Demand** with the date of service endorsed thereon by me, to: **Lynanne Gares** as **Litigation Management Services Leader** at the address of: **251 Little Falls Drive, Wilmington, New Castle County, DE 19808**, who stated they are authorized to accept service for **Purdue Pharma, L.P.**, and informed said person of the contents therein, in compliance with state statutes.

I am a private process server and I am over the age of twenty one, not a party to nor interested in the outcome of this lawsuit. I am capable of making this Affidavit, and fully competent to testify to the matters stated herein. I have personal knowledge of each of the matters stated herein and the statements made in this Affidavit are true and correct.

GEORGE C. BARTOLI
MY COMMISSION
EXPIRES
APRIL 5, 2022
NOTARY PUBLIC
STATE OF DELAWARE

Subscribed and Sworn to before me on the 27th day of April, 2018 by the affiant who is personally known to me.

NOTARY PUBLIC

Darryl Wooding

Our Job Serial Number: ESA-2018000759
Ref: 55652

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Exhibit 5

CITATION

18-04-24828

CLERK OF THE COURT
Liz Pirkle
836 Austin Street, Room #318
555 NORTH CARANCAHUA STREET
CORPUS CHRISTI TX 78478
Hempstead, Texas 77445

ATTORNEY(S) FOR PLAINTIFF OR PLAINTIFFS
MIKAL WATTS
TOWER II BUILDING 14TH FLOOR

800-706-8667

THE STATE OF TEXAS

NOTICE TO DEFENDANT: "You have been sued. You may employ an attorney. If you or your attorney do not file a written answer with the clerk who issued this citation by 10:00 a.m. on the Monday next following the expiration of twenty days after you were served this citation and petition, a default judgment may be taken against you."

TO: PURDUE PHARMA LP, through its registered agent The Prentiss-Hall Corporation System, Inc., 251 Little Falls Drive, Wilmington, DE 19808, Defendant, Greeting:

You are hereby commanded to appear by filing a written answer to the Plaintiff's Original Petition at or before ten o'clock A.M. of the Monday next after the expiration of twenty days after the date of service of this citation before the Honorable Albert M. McCaig, Jr., 506th District Court of Waller County, Texas at the Courthouse of said County in Hempstead, Texas. Said Petition was filed the 12th day of April, 2018, in this case, **number 18-04-24828** on the docket of said court, and styled,

County of Waller vs. Purdue Pharma LP,Purdue Pharma Inc.,Purdue Frederick Company,Teva Pharmaceutical Industries, Ltd.,TEV Pharmaceuticals USA, Inc.,Janssen Pharmaceutica, Inc. n/k/a Janssen Pharmaceuticals, Inc.,Endo Health Solutions, Inc.,Abbott Laboratories,Knoll Pharmaceutical Company,Allergen PLC f/k/a Actavis PLC f/k/a Allergen Finance LLC,Actavis LLC,Actavis Pharma, Inc. f/k/a Watson Pharma, Inc.,INSYS Therapeutics, Inc.,INSYS Manufacturing LLC,Mallinckrodt PLC,McKesson Corporation,Cardinal Health Inc.,Amerisourcebergen Corporation

The nature of Plaintiff's demand is fully shown by a true and correct copy of Plaintiff's Original Petition accompanying this citation and made a part hereof.

The officer executing this writ shall promptly serve the same according to requirements of law, and the mandates thereof, and make due return as the law directs.

Issued and given under my hand and seal of said Court at Hempstead, Texas, on 13th day of April, 2018.

LIZ PIRKLE, Clerk
District Court, Waller County, Texas
By: David Kehlenbeck
David Kehlenbeck, Deputy

DISTRICT COURT OF WALLER COUNTY, TEXAS

SHERIFF'S RETURN

CAME TO HAND the _____ day of _____, _____, at _____ o'clock ____.M. and executed by delivering to each of the within-named defendant's, in person, a true copy of this Citation, having first endorsed thereon the date of delivery, together with the accompanying true and correct copy of the Plaintiff's Petition, at the following times and places, to-wit:

NAME	DATE	TIME	PLACE

AFFIDAVIT ATTACHED

And not executed at to the defendant, _____
The diligence used in finding said defendant, being _____
And the cause of failure to execute this process is: _____
And the information received at to the whereabouts of the said defendant, being _____

FEES-Serving_____cop____$_____ _____Sheriff
Total_____$_____ _____County, Texas

By:_____

AFFIDAVIT OF SERVICE

State of Texas **County of Waller** **506th Judicial District Court**

Case Number: 18-04-24828

Plaintiff:
County of Waller

vs.

Defendant:
Purdue Pharma LP;Purdue Pharma ET AL

Received these papers on the 13th day of April, 2018 at 4:30 pm to be served on **Purdue Pharma LP, through Its Registered Agent The Prentiss-Hall Corporation System, Inc.,, 251 Little Falls Drive, Wilmington, New Castle County, DE 19808**.

I, Darryl Wooding, being duly sworn, depose and say that on the **16th day of April, 2018** at **12:07 pm, I:**

delivered to an **AUTHORIZED** person a true copy of the **Citation- Plaintiff's Original Petition And Jury Demand** with the date of service endorsed thereon by me, to: **Lynanne Gares** as **Litigation Management Services Leader** at the address of: **251 Little Falls Drive, Wilmington, New Castle County, DE 19808**, who stated they are authorized to accept service for **Purdue Pharma LP, through Its Registered Agent**, and informed said person of the contents therein, in compliance with state statutes.

I am a private process server and I am over the age of twenty one, not a party to nor interested in the outcome of this lawsuit. I am capable of making this Affidavit, and fully competent to testify to the matters stated herein. I have personal knowledge of each of the matters stated herein and the statements made in this Affidavit are true and correct.



Darryl Wooding

Subscribed and Sworn to before me on the 27th day of April, 2018 by the affiant who is personally known to me.

NOTARY PUBLIC

Our Job Serial Number: ESA-2018000801

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Exhibit 6

Return to
District Clerk

CLERK'S
ORIGINAL

Return to
District Clerk

CLERK'S
ORIGINAL

CLERK OF THE COURT
DANA FRITSCHE
205 E. FOX ST. SUITE # 2001
CALDWELL, TX 77836

ATTORNEY FOR PLAINTIFF
MIKAL C WATTS
811 BARTON SPRINGS ROAD SUITE 725
AUSTIN, TX 78704

THE STATE OF TEXAS

NOTICE TO DEFENDANT: "YOU HAVE BEEN SUED. YOU MAY EMPLOY AN ATTORNEY. IF YOU OR YOUR ATTORNEY DO NOT FILE A WRITTEN ANSWER WITH THE CLERK WHO ISSUED THIS CITATION BY 10:00 A.M. ON THE MONDAY NEXT FOLLOWING THE EXPIRATION OF TWENTY DAYS AFTER THE DATE YOU WERE SERVED THIS CITATION AND PETITION, A DEFAULT JUDGMENT MAY BE TAKEN AGAINST YOU."

To Defendant, **INSYS MANUFACTURING LLC, CAN BE SERVED BY SERVING ITS REGISTRED AGENT AS FOLLOWS: CT CORPORATION SYSTEM, 1999 BRYAN STREET, SUITE 900, DALLAS, TX 75201**

Greeting:

You are hereby commanded to appear by filing a written answer to the **PLAINTIFF'S ORIGINAL PETITION AND JURY DEMAND** at or before ten o'clock A.M. of the Monday next after the expiration of twenty days after the date of service of this citation before the Honorable 335th Judicial District Court of Burleson County, at the Courthouse in said County in Caldwell, Texas.

Said Plaintiff's Petition was filed in said court on the day of 13th day of April, 2018 in this cause, numbered **29267** on the docket of said court, and styled,

COUNTY OF BURLESON
VS.
AMERISOURCEBERGEN CORPORATION,PURDUE PHARMA LP,PURDUE PHARMA INC.,
PURDUE FREDERICK COMPANY, TEVA PHARMACEUTICAL INDUSTRIES LTD.
TEV PHARMACEUTICALS USA, INC.,JANSSEN PHARMACEUTICA, INC. N/K/A/ JANSSEN PHARMACEUTICALS, INC.
ENDO HEALTH SOLUTIONS, INC.,ABBOTT LABORATORIES, KNOLL PHARMACEUTICAL COMPANY
ALLERGEN PLC F/K/A ACTAVIS PLC F/K/A ALLERGEN FINANCE LLC.,ACTAVIS LLC
ACTAVIS PHARMA, INC. F/K/A WATSON PHARMA, INC., INSYS THERAPEUTICS, INC.
INSYS MANUFACTURING LLC,MALLINCKRODT PLC,MCKESSON CORPORATION,CARDINAL HEALTH INC.

The nature of Plaintiff's demand is fully shown by a true and correct copy of accompanying this citation and made a part hereof.

The officer executing this writ shall promptly serve the same according to the requirements of law, and the mandates thereof, and make due return as the law directs.

Issued and given under my hand and seal of said Court at Caldwell, Texas, this 13th day of April, 2018.

CLERK DISTRICT COURT (SEAL) BURLESON COUNTY TEXAS

Dana Fritsche, Clerk, District Court
Burleson County, Texas

By _____
RAQUEL PENA, DEPUTY

SHERIFF'S RETURN

Came to hand on the _____ day of _____,
_____, at _____ o'clock ____M and executed in _____ County, Texas, by delivering to each of the within named defendants, in person, a true copy of this Citation, having first endorsed thereon the date of delivery, together with the accompanying true and correct copy of the Plaintiff's Petition, at the following times, to wit:_____
And not executed as to the defendant _____, _____
_____
the diligence used in finding said defendant ____, being _____

NAME	DATE			TIME		
	Month	Day	Year	Hour	Min.	__. M.

and the cause of failure to execute this process is: _____
and the information received as to the whereabouts of the said defendant _____, being _____

FEES – Serving _____ cop ____ $ _____

_____
Sheriff
Burleson County, Texas

Total _____ $ _____ By _____ Deputy

AFFIDAVIT ATTACHED

File No. 29267

DISTRICT COURT

Burleson County, Texas

CITATION

COUNTY OF BURLESON
VS.
AMERISOURCEBERGEN CORPORATION,PURDUE PHARMA LP,PURDUE PHARMA INC. PURDUE FREDERICK COMPANY,TEVA PHARMACEUTICAL INDUSTRIES LTD. TEV PHARMACEUTICALS USA, INC.,JANSSEN PHARMACEUTICA, INC. N/K/A/ JANSSEN PHARMACEUTICALS, INC.,ENDO HEALTH SOLUTIONS, INC.,ABBOTT LABORATORIES KNOLL PHARMACEUTICAL COMPANY,ALLERGEN PLC F/K/A ACTAVIS PLC F/K/A ALLERGEN FINANCE LLC., ACTAVIS LLC,ACTAVIS PHARMA, INC. F/K/A WATSON PHARMA, INC. INSYS THERAPEUTICS, INC.,INSYS MANUFACTURING LLC,MALLINCKRODT PLC MCKESSON CORPORATION,CARDINAL HEALTH INC.

Issued 13th day of April, 2018
Dana Fritsche, District Clerk
By: Raquel Pena, Deputy

Filed 13th day of April, 2018
Dana Fritsche, District Clerk
By: Raquel Pena, Deputy

AFFIDAVIT OF SERVICE

State of Texas **County of Burleson** **335th District Court**

Case Number: 29267

Plaintiff:
County of Burleson

vs.

Defendant:
Purdue Pharma LP;Purdue Pharma, et al

Received these papers on the 13th day of April, 2018 at 4:30 pm to be served on **Insys Manufacturing, Llc, through its registered agent CT Corporation, 1999 Bryan Street Suite 900, Dallas, Dallas County, TX 75201**.

I, Carlos Barrera, being duly sworn, depose and say that on the **16th day of April, 2018** at **1:00 pm, I:**

delivered to **Insys Manufacturing, Llc, through its registered agent CT Corporation**, a true copy of the **Citation- Plaintiff's Original Petition And Jury Demand** with the date of service endorsed thereon by me, to: **Teri Thongsavat, who is authorized to accept service for CT Corporation System,** at the address of: **1999 Bryan Street, Suite 900, Dallas, Dallas County, TX 75201**, and informed said person of the contents therein, in compliance with state statutes.

I am a private process server and I am over the age of twenty one, not a party to nor interested in the outcome of this lawsuit. I am capable of making this Affidavit, and fully competent to testify to the matters stated herein. I have personal knowledge of each of the matters stated herein and the statements made in this Affidavit are true and correct.

Subscribed and Sworn to before me on the 25 day of April, 2018 by the affiant who is personally known to me.

NOTARY PUBLIC

EDRICK ALVISO
MY COMMISSION EXPIRES
March 23, 2019

Carlos Barrera
PSC5305 Exp. 06/30/18

Our Job Serial Number: ESA-2018000804

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Exhibit 7

CITATION – PERSONAL SERVICE – TRCP 99

THE STATE OF TEXAS

2018-DCL-02237-G

County of Cameron	§	IN THE 404TH DISTRICT COURT
VS	§	OF
Purdue Pharma LP	§	CAMERON COUNTY, TEXAS

TO **INSYS Manufacturing LLC**
by serving its registered agent as follows:
CT Corporation System,
1999 Bryan Street, Suite 900
Dallas, TX 75201(collectively "INSYS"), GREETING:

NOTICE TO DEFENDANT: "You have been sued. You may employ an attorney. If you or your attorney does not file a written answer with the clerk who issued this citation by 10:00 a.m. on the Monday next following the expiration of 20 days after the date you were served this citation and petition, a default judgment may be taken against you." *TRCP. 99*

You are hereby commanded to appear by filing a written answer to **Plaintiff's Original Petition and Jury Demand** at or before 10:00 o'clock A.M. on the Monday next after the expiration of 20 days after the date of service of this citation before the Honorable 404th District Court of Cameron County, at the Courthouse in said County in Brownsville, Texas. Said **Plaintiff's Original Petition and Jury Demand** was filed in said court on **April 12, 2018**, in the above entitled cause.

The file number of said suit being
2018-DCL-02237-G

The style of the case is:
County of Cameron
vs.
Purdue Pharma LP,Purdue Pharma Inc.,The Purdue Frederick Company,Teva Pharmaceutical Industries, Ltd.,TEV Pharmaceutaicals USA, Inc.,Janssen Pharmaceutica, Inc. n/k/a Janssen Pharmaceutcials, Inc.,Endo Health Solutions, Inc.,Abbott Laboratories,Knoll Pharmaceutical Company,Allergen PLC f/k/a Actavis PLC f/k/a Allergen Finance LLC,Actavis LLC,Actavis Pharma, Inc. f/k/a Watson Pharma, Inc.,INSYS Therapeutics, Inc.,INSYS Manufacturing LLC,Mallinckrodt PLC,McKesson Corporation,Cardinal Health, Inc.,Amerisourcebergen Corporation

The nature of Petitioner's demand is fully shown by a true and correct copy of **Plaintiff's Original Petition and Jury Demand** accompanying this citation and made a part hereof.

The officer executing this writ shall promptly serve the same according to requirements of law, and the mandates thereof, and make due return as the law directs.

Issued and given under my hand and seal of said Court at Brownsville, Texas, on this the 13th day of April, 2018.

ATTORNEY:
MIKAL WATTS
20981820
210-447-0500
300 CONVENT STREET STE 100
San Antonio TX 78205

DISTRICT COURT CAMERON COUNTY, TEXAS

Eric Garza
District Clerk of Cameron County
974 E Harrison St.
Brownsville, Texas 78520

By:_____
Adriana Munoz, Deputy Clerk

PDF created with pdfFactory Pro trial version www.pdffactory.com

2018-DCL-02237-G 404th District Court	County of Cameron vs. Purdue Pharma LP,Purdue Pharma Inc.,The Purdue Frederick Company,Teva Pharmaceutical Industries, Ltd.,TEV Pharmaceutaicals USA, Inc.,Janssen Pharmaceutica, Inc. n/k/a Janssen Pharmaceutcials, Inc.,Endo Health Solutions, Inc.,Abbott Laboratories,Knoll Pharmaceutical Company,Allergen PLC f/k/a Actavis PLC f/k/a Allergen Finance LLC,Actavis LLC,Actavis Pharma, Inc. f/k/a Watson Pharma, Inc.,INSYS Therapeutics, Inc.,INSYS Manufacturing LLC,Mallinckrodt PLC,McKesson Corporation,Cardinal Health, Inc.,Amerisourcebergen Corporation

RETURN OF SERVICE

Executed when copy is delivered:
This is a true copy of the original citation, was delivered to defendant _____, on the _____ day of _____, 20_____.

NAME/ADDRESS FOR SERVICE
_____
_____
_____
_____

_____Officer
_____County, TX

By:_____Deputy

OFFICERS RETURN

Came to hand on the _____ day of _____, at _____o'clock ___m and _____ County, Texas, by delivering to each of the within named defendants in person, a true copy of this _____ with the date of delivery endorsed thereon, together with the accompanying copy of the _____ at the following times and places, to wit:

NAME	DATE/TIME	PLACE/COURSE/DISTANCE FROM COURTHOUSE

AFFIDAVIT ATTACHED

And not executed as to the defendant(s),_____
The diligence used in finding said defendant(s) being:
_____
and the cause or failure to execute this process is:
_____
and the information received as to the whereabouts of said defendant(s) being:
_____

FEES:
SERVING PETITION/COPY $_____
TOTAL: $_____

_____Officer
_____County, TX

By:_____Deputy

_____
AFFIANT

COMPLETE IF YOU ARE A PERSON OTHER THAN A SHERIFF, CONSTABLE, OR CLERK OF THE COURT.

In accordance with Rule 107: The officer or authorized person who serves, or attempts to serve, a citation shall sign the return. The signature is not required to be verified. If the return is signed by a person other than a sheriff, constable or the clerk of the court, the return shall be signed under penalty or perjury and contain the following statement:
"My name is _____, my date of birth is _____, my address is
_____
I DECLARE UNDER PENALTY OF PERJURY THAT THE FOREGOING IS TRUE AND CORRECT.
EXECUTED in _____ County, State of _____, on the _____ day of _____. 20_____.

_____
ID Number/Expiration of Certification

_____
Declarant/Authorized Process Server

PDF created with pdfFactory Pro trial version www.pdffactory.com

AFFIDAVIT OF SERVICE

State of Texas **County of Cameron** **404th District Court Court**

Case Number: 2018-DCL-02237-G

Plaintiff:
County Of Cameron

vs.

Defendant:
Purdue Pharma LP, Purdue Pharma Inc., The Purdue Frederik Company ET AL

Received these papers on the 13th day of April, 2018 at 4:30 pm to be served on **INSYS Manufacturing LLC by serving its registered agent as follows: CT Corporation, 1999 Bryan Street Suite 900, Dallas, TX 75201**.

I, Carlos Barrera, being duly sworn, depose and say that on the **16th day of April, 2018** at **1:00 pm, I:**

delivered to **INSYS Manufacturing LLC by serving its registered agent as follows: CT Corporation**, a true copy of the **Citation - Plaintiff Original Petition and Jury Demand** with the date of service endorsed thereon by me, to: **Teri Thongsavat, who is authorized to accept service for CT Corporation System,** at the address of: **1999 Bryan Street, Suite 900, Dallas, Dallas County, TX 75201**, and informed said person of the contents therein, in compliance with state statutes.

I am a private process server and I am over the age of twenty one, not a party to nor interested in the outcome of this lawsuit. I am capable of making this Affidavit, and fully competent to testify to the matters stated herein. I have personal knowledge of each of the matters stated herein and the statements made in this Affidavit are true and correct.

Carlos Barrera
PSC5305 Exp. 06/30/18

Our Job Serial Number: ESA-2018000800

Subscribed and Sworn to before me on the 25 day of APRIL, 2018 by the affiant who is personally known to me.

NOTARY PUBLIC

EDRICK ALVISO
MY COMMISSION EXPIRES
March 23, 2019

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Exhibit 8

NOTICE: Pursuant to TRCP 126: Statement of Inability to Afford Payment of Court Costs or an Appeal Bond filed = NO

C-1349-18-C
139TH DISTRICT COURT, HIDALGO COUNTY, TEXAS

CITATION
THE STATE OF TEXAS

NOTICE TO DEFENDANT: You have been sued. You may employ an attorney. If you or your attorney do not file a written answer with the clerk who issued this citation by 10:00 a.m. on the Monday next following the expiration of twenty (20) days after you were served with this citation and petition, a default judgment may be taken against you.

INSYS MANUFACTURING, LLC
REGISTERED AGENT: CT CORPORATION SYSTEM
1999 BRYAN STREET, SUITE 900
DALLAS, TEXAS 75201

You are hereby commanded to appear by filing a written answer to the **PLAINTIFF'S ORIGINAL PETITION AND JURY DEMAND** on or before 10:00 o'clock a.m. on the Monday next after the expiration of twenty (20) days after the date of service hereof, before the **Honorable Bobby Flores, 139th District Court** of Hidalgo County, Texas at the Courthouse at 100 North Closner, Edinburg, Texas 78539.

Said petition was filed on this the 12th day of April, 2018 and a copy of same accompanies this citation. The file number and style of said suit being C-1349-18-C, **COUNTY OF HIDALGO VS. PURDUE PHARMA LP, PURDUE PHARMA INC., PURDUE FREDERICK COMPANY, TEVA PHARMACEUTICAL INDUSTRIES LTD., TEV PHARMACEUTICALS USA INC., JANSSEN PHARMACEUTICA, INC. N/K/A JANSSEN PHARMACEUTICALS, INC., ENDO HEALTH SOLUTIONS, INC., ABBOTT LABORATORIES, KNOLL PHARMACEUTICAL COMPANY, A WHOLLY-OWNED SUBSIDIARY OF ABBOTT LABORATORIES, ALLERGEN PLC, F/K/A ACTAVIS PLC, F/K/A ALLERGEN FINANCE LLC, F/K/A ACTAVIS, INC.,, INSYS THERAPEUTICS, INC., INSYS MANUFACTURING LLC, A WHOLLY-OWNED SUBSIDIARY OF INSYS THERAPEUTICS, INC., MALLINCKRODT PLC, MCKESSON CORPORATION, CARDINAL HEALTH INC., AMERISOURCEBERGEN CORPORATION, ACTAVIS LLC, ACTAVIS PHARMA, INC. F/K/A WATSON PHARMA, INC.**

Said Petition was filed in said court by Attorney **MIKAL C. WATTS, 4 DOMINION DRIVE BLDG. 3, STE. 100 SAN ANTONIO, TEXAS 78257**.

The nature of the demand is fully shown by a true and correct copy of the petition accompanying this citation and made a part hereof.

The officer executing this writ shall promptly serve the same according to requirements of law, and the mandates thereof, and make due return as the law directs.

ISSUED AND GIVEN UNDER MY HAND AND SEAL of said Court at Edinburg, Texas on this the 13th day of April, 2018.

LAURA HINOJOSA, DISTRICT CLERK
100 N. CLOSNER, EDINBURG, TEXAS
HIDALGO COUNTY, TEXAS



_____
IRIS RAMIREZ, DEPUTY CLERK

C-1349-18-C
OFFICER'S RETURN

Came to hand on _____ of _____, 201____ at _____ o'clock ____.m. and executed in _____ County, Texas by delivering to each of the within named Defendant in person, a true copy of this citation, upon which I endorsed the date of delivery to said Defendant together with the accompanying copy of the _____ (petition) at the following times and places, to-wit:

NAME	DATE	TIME	PLACE

And not executed as to the defendant, _____ the diligence used in finding said defendant, being: _____ and the cause of failure to execute this process is: _____ and the information received as to the whereabouts of said defendant, being: _____. I actually and necessarily traveled _____ miles in the service of this citation, in addition to any other mileage I may have traveled in the service of other process in the same case during the same trip.

Fees: serving ... copy(s) $_____
miles .....$_____

_____
DEPUTY

AFFIDAVIT ATTACHED

COMPLETE IF YOU ARE PERSON OTHER THAN A SHERIFF, CONSTABLE OR CLERK OF THE COURT

In accordance to Rule 107, the officer or authorized person who serves or attempts to serve a citation must sign the return. If the return is signed by a person other than a sheriff, constable or the clerk of the court, the return must either be verified or be signed under the penalty of perjury. A return signed under penalty of perjury must contain the statement below in substantially the following form:

"My name is _____, my date of birth is _____ and the address is _____,and I declare under penalty of perjury that the foregoing is true and correct.

EXECUTED in _____County, State of Texas, on the _____ day of _____, 201___.

_____
Declarant"

_____
If Certified by the Supreme Court of Texas
Date of Expiration / SCH Number

AFFIDAVIT OF SERVICE

State of Texas **County of Hidalgo** **139th District Court**

Case Number: C-1349-18-C

Plaintiff:
County of Hidalgo

vs.

Defendant:
Purdue Pharma LP, ET AL

Received these papers on the 13th day of April, 2018 at 4:30 pm to be served on **INSYS Manufacturing, LLC Registered Agent: CT Corporation System, 1999 Bryan Street, Suite 900, Dallas, TX 75201**.

I, Carlos Barrera, being duly sworn, depose and say that on the **16th day of April, 2018** at **1:00 pm, I:**

delivered to **INSYS Manufacturing, LLC Registered Agent: CT Corporation System**, a true copy of the **Citation - Plaintiff's Original Petition and Jury Demand** with the date of service endorsed thereon by me, to: **Teri Thongsavat, who is authorized to accept service for CT Corporation System,** at the address of: **1999 Bryan Street, Suite 900, Dallas, Dallas County, TX 75201**, and informed said person of the contents therein, in compliance with state statutes.

I am a private process server and I am over the age of twenty one, not a party to nor interested in the outcome of this lawsuit. I am capable of making this Affidavit, and fully competent to testify to the matters stated herein. I have personal knowledge of each of the matters stated herein and the statements made in this Affidavit are true and correct.

Subscribed and Sworn to before me on the 25 day of April, 2018 by the affiant who is personally known to me.

NOTARY PUBLIC

EDRICK ALVISO
MY COMMISSION EXPIRES
March 23, 2019

Carlos Barrera
PSC5305 Exp. 06/30/18

Our Job Serial Number: ESA-2018000757
Ref: 55652

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Exhibit 9

CLERK OF THE COURT
Donna G. Brown, District Clerk
1923 Sam Houston, Room 115
Liberty, Texas 77575

ATTORNEY FOR PLAINTIFF OR PLAINTIFF'(S)
Mikal C. Watts
4 Dominion Drive, Bldg.3, Suite 100
San Antonio, Texas 78257

NOTICE TO DEFENDANT: "You have been sued. You may employ an attorney. If you or your attorney do not file a written answer with the clerk who issued this citation by 10:00 a.m. on the Monday next following the expiration of twenty days after you were served this citation and petition, a default judgment may be taken against you."

THE STATE OF TEXAS

TO INSYS Manufacturing LLC, a wholly-owned subsidiary of INSYS Therapeutics, Inc., by and through its registered agent, CT Corporation System, Respondent, Greetings;

You are hereby commanded to appear by filing a written answer to the Petitioner's Original Petition and Jury Demand, at or before ten o'clock A.M. of the Monday next after the expiration of twenty days after the date of service of this citation before the Honorable **75TH JUDICIAL DISTRICT COURT** of Liberty County, Texas at the Court House of said County in Liberty, Texas.

Said Petitioner's Petition was filed in said court on the 12th day of April, 2018, in this cause, Numbered **CV1813222** on the docket of said court, and styled, County Of Liberty, Plaintiff vs. Purdue Pharma LP; Purdue Pharma Inc; Purdue Frederick Company; Teva Pharmaceutical Industries, LTD; TEV Pharmaceuticals USA, Inc; Janssen Pharmaceutica, Inc., n/k/a Janssen Pharmaceuticals, Inc.; ENDO Health Solutions, Inc.; Abbott Laboratories; Knoll Pharmaceutical Company, a wholly-owned subsidiary of Abbott Laboratories; Allergen PLC, f/k/a Actavis PLC f/k/a Allergen Finance LLC, f/k/a Actavis, Inc., f/k/a Watson Laboratories, Inc.; Actavis LLC; Actavis Pharma, Inc., f/k/a Watson Pharma, Inc.; Insys Therapeutics, Inc.; Insys Manufacturing LLC, a wholly-owned Subsidiary of Insys Therapeutics, Inc.; Mallinckrodt PLC; McKesson Corporation; Cardinal Health, Inc.; and Amerisourcebergen Corporation; Defendants.

The nature of Petitioner's demand is fully shown by a true and correct copy of Petitioner's Original Petition and Jury Demand, accompanying this citation and made a part hereof.

The Officer executing this writ shall promptly serve the same according to requirements of law, and the mandates thereof, and make due return as the law directs.

Issued and given under my hand and seal of said Court at Liberty, Texas, this the 13th day of April, 2018.

(SEAL)

Attest Donna G. Brown, Clerk, District Court
Donna G. Brown, District Clerk
Liberty County, Texas

By Frances Kester, Deputy
Frances Kester, Deputy

Rule 106 " the citation shall be served by the officer delivering to each defendant, in person, a true copy of this citation with the date of delivery endorsed thereon and with a copy of the petition attached thereto.

SHERIFF'S RETURN

Came to hand on _____ day of _____, 201___, at _____ o'clock ____. M., and executed in _____ County, Texas by delivering to each of the within-named _____, in person, a true copy of this Citation, having first endorsed thereon the date of delivery, together with the accompanying true and correct copy of the Plaintiff's Petition, at the following times and places, to wit:

Name	Date			Time			Place, and Course and Distance From Court House
	Month	Day	Year	Hour	Min.	....M.	

And not executed as to the Respondent, _____ the diligence used in finding said Respondent being: _____ and the cause of failure to execute this process is: _____ and the information received as to the whereabouts of the said Respondent, being: _____

AFFIDAVIT ATTACHED

FEES — Serving _____ Copy _____ $ _____.____
Total $_____.___

_____Sheriff/Constable, Precinct # _____

_____County, Texas

By _____,
Deputy

CERTIFICATE OF DELIVERY

I, do hereby certify that I delivered to _____, Defendant on the _____ day _____, 201_____, at _____o'clock ___.M. a copy of this instrument.

_____Sheriff/Constable,
Precinct # _____
By_____, Deputy

AFFIDAVIT OF SERVICE

State of Texas **County of Liberty** **75th Judicial Court**

Case Number: CV1813222

Plaintiff:
County of Liberty

vs.

Defendant:
Purdue Pharma LP, ET AL

Received these papers on the 6th day of April, 2018 at 4:30 pm to be served on **Insys Manufacturing, Llc, through its registered agent CT Corporation, 1999 Bryan Street Suite 900, Dallas, TX 75201**.

I, Carlos Barrera, being duly sworn, depose and say that on the **16th day of April, 2018** at **1:00 pm, I:**

delivered to **Insys Manufacturing, Llc, through its registered agent CT Corporation**, a true copy of the **Citation - Plaintiff's Original Petition and Jury Demand** with the date of service endorsed thereon by me, to: **Teri Thongsavat, who is authorized to accept service for CT Corporation System,** at the address of: **1999 Bryan Street, Suite 900, Dallas, Dallas County, TX 75201**, and informed said person of the contents therein, in compliance with state statutes.

I am a private process server and I am over the age of twenty one, not a party to nor interested in the outcome of this lawsuit. I am capable of making this Affidavit, and fully competent to testify to the matters stated herein. I have personal knowledge of each of the matters stated herein and the statements made in this Affidavit are true and correct.

Subscribed and Sworn to before me on the 25 day of APRIL, 2018 by the affiant who is personally known to me.

NOTARY PUBLIC

EDRICK ALVISO
MY COMMISSION EXPIRES
March 23, 2019

Carlos Barrera
PSC5305 Exp. 06/30/18

Our Job Serial Number: ESA-2018000760
Ref: 55652

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Exhibit 10

CITATION

18-04-24828

CLERK OF THE COURT
Liz Pirkle
836 Austin Street, Room #318
555 NORTH CARANCAHUA STREET
CORPUS CHRISTI TX 78478
Hempstead, Texas 77445

ATTORNEY(S) FOR PLAINTIFF OR PLAINTIFFS
MIKAL WATTS
TOWER II BUILDING 14TH FLOOR

800-706-8667

THE STATE OF TEXAS

NOTICE TO DEFENDANT: "You have been sued. You may employ an attorney. If you or your attorney do not file a written answer with the clerk who issued this citation by 10:00 a.m. on the Monday next following the expiration of twenty days after you were served this citation and petition, a default judgment may be taken against you."

TO: INSYS MANUFACTURING, LLC, through its registered agent CT Corporation, 1999 Bryan Street, Suite 900, Dallas, TX 75201 Defendant, Greeting:

You are hereby commanded to appear by filing a written answer to the Plaintiff's Original Petition at or before ten o'clock A.M. of the Monday next after the expiration of twenty days after the date of service of this citation before the Honorable Albert M. McCaig, Jr., 506th District Court of Waller County, Texas at the Courthouse of said County in Hempstead, Texas. Said Petition was filed the 12th day of April, 2018, in this case, **number 18-04-24828** on the docket of said court, and styled,

County of Waller vs. Purdue Pharma LP,Purdue Pharma Inc.,Purdue Frederick Company,Teva Pharmaceutical Industries, Ltd.,TEV Pharmaceuticals USA, Inc.,Janssen Pharmaceutica, Inc. n/k/a Janssen Pharmaceuticals, Inc.,Endo Health Solutions, Inc.,Abbott Laboratories,Knoll Pharmaceutical Company,Allergen PLC f/k/a Actavis PLC f/k/a Allergen Finance LLC,Actavis LLC,Actavis Pharma, Inc. f/k/a Watson Pharma, Inc.,INSYS Therapeutics, Inc.,INSYS Manufacturing LLC,Mallinckrodt PLC,McKesson Corporation,Cardinal Health Inc.,Amerisourcebergen Corporation

The nature of Plaintiff's demand is fully shown by a true and correct copy of Plaintiff's Original Petition accompanying this citation and made a part hereof.

The officer executing this writ shall promptly serve the same according to requirements of law, and the mandates thereof, and make due return as the law directs.

Issued and given under my hand and seal of said Court at Hempstead, Texas, on 13th day of April, 2018

LIZ PIRKLE, Clerk
District Court, Waller County, Texas
By: _____
David Kehlenbeck, Deputy

DISTRICT COURT OF WALLER COUNTY, TEXAS

SHERIFF'S RETURN

CAME TO HAND the _____ day of _____, _____, at _____ o'clock ____.M. and executed by delivering to each of the within-named defendant's, in person, a true copy of this Citation, having first endorsed thereon the date of delivery, together with the accompanying true and correct copy of the Plaintiff's Petition, at the following times and places, to-wit:

NAME	DATE	TIME	PLACE

AFFIDAVIT ATTACHED

And not executed at to the defendant, _____
The diligence used in finding said defendant, being _____
And the cause of failure to execute this process is: _____
And the information received at to the whereabouts of the said defendant, being _____
FEES-Serving_____cop____$_____ _____Sheriff
Total_____$_____ _____County, Texas

By:_____

AFFIDAVIT OF SERVICE

State of Texas **County of Waller** **506th Judicial District Court**

Case Number: 18-04-24828

Plaintiff:
County of Waller

vs.

Defendant:
Purdue Pharma LP;Purdue Pharma ET AL

Received these papers on the 13th day of April, 2018 at 4:30 pm to be served on **Insys Manufacturing, Llc, through its registered agent CT Corporation, 1999 Bryan Street Suite 900, Dallas, Dallas County, TX 75201**.

I, Carlos Barrera, being duly sworn, depose and say that on the **16th day of April, 2018** at **1:00 pm, I:**

I am a private process server and I am over the age of twenty one, not a party to nor interested in the outcome of this lawsuit. I am capable of making this Affidavit, and fully competent to testify to the matters stated herein. I have personal knowledge of each of the matters stated herein and the statements made in this Affidavit are true and correct.

Subscribed and Sworn to before me on the 25 day of APRIL, 2018 by the affiant who is personally known to me.

NOTARY PUBLIC

EDRICK ALVISO
MY COMMISSION EXPIRES
March 23, 2019

Carlos Barrera
PSC5305 Exp. 06/30/18

Our Job Serial Number: ESA-2018000802

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